valid state interest in the preservation of public health to design appropriate policy interventions on the basis of the data available to it.' The court had gone ahead to set out three conditions: first, there must be a governing law. Second, this governing law must have a legitimate aim. And third, the law adopted must be proportionate to the objective sought to be achieved. However, until March 2020, India had not passed a data protection law successfully. In the absence of such a law, during a time of national crisis, it would be only natural for the government to use public data for the cause of national safety, as long as they kept the information anonymous.[13] Hence, Aarogya Setu was designed in line with the privacy policy: 'The information on the app would be uploaded to a server every fifteen minutes. This information would then be used in anonymised, aggregated datasets for the purpose of generating reports, heat maps and other statistical visualisations for the purpose of the management of COVID-19 in the country…'[14]

In the first week of April, all of these facts were presented by the NIC and NITI Aayog team to a high-level group chaired by the prime minister, comprising Union ministers Amit Shah, Ravi Shankar Prasad, Piyush Goyal and secretaries of the Ministry of Home Affairs, the Ministry of Electronics and Information Technology, the Ministry of Health, the Ministry of Railways and Ministry of Human Resource Development. Approvals came in fairly quickly and it was decided that awareness campaigns of the app be run at the highest levels, in order to ensure high uptake. The prime minister would also, in his forthcoming address to the nation, appeal to the people to download and use the app in the interest of the nation.

Although, not as high as envisioned, the app has had over 190 million downloads with over 140 million downloads within the first year. It is, as it stands today, the world's most downloaded COVID-19 tracking app.[15] And in the larger scheme of things, it became an important piece of ammunition in India's arsenal of tools to fight the contagion effectively.